

Court No. - 21

Case :- WRIT - C No. - 10635 of 2023

Petitioner :- Ghanshyam Gupta

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinod Kumar Yadav, Shashank Kumar

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Umesh Chandra Sharma, J.

The petitioner has challenged the recovery notice dated 2.9.2022 issued by respondent no. 2 and the consequent proceedings for recovery of the amount allegedly due against him in a case of theft of electricity.

Sri Udit Chandra, learned counsel for the respondent Electricity Department, states that since the impugned notice is a notice of provisional assessment and therefore it is open to the petitioner to file his objection and states that the same will be considered in accordance with law.

Accordingly, the petition is disposed of with liberty to the petitioner to file objection within a period of two weeks from today and in which event, the respondents will proceed to pass fresh order of final assessment, after following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Umesh Chandra Sharma, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.3.2023

Jaideep/-